

CHAPTER XIII.

Speeding the Cause.

Before stating the practice after the hearing of the cause, it is as well to give the rules, under which, if the plaintiff is dilatory, the defendant can force the cause to a hearing, or get the Bill dismissed. The following Orders of 1850 settle the practice on this point.

Any defendant may upon notice move the Court that the bill may be dismissed with costs, for want of prosecution, and the Court may order accordingly.

1. If the plaintiff, having obtained no order to enlarge the time, does not obtain and serve an order for leave to amend the bill, or does not file the replication, or set down the cause to be heard on bill and answer, within four weeks after the answer, or the last of the answers has been filed, or after the filing of a traversing note : or—
2. If the plaintiff, having obtained no order to enlarge the time, does not amend the bill within fourteen days after the date of the order for leave to amend : or—
3. If the plaintiff, having obtained no order to enlarge the time, does not set down the cause to be heard, and obtain and serve a subpoena to hear judgment within four weeks after publication has passed.

Where the plaintiff has, after answer, amended his bill, any defendant may upon notice move to dismiss the bill with costs for want of prosecution, if the plaintiff, having obtained no order to enlarge the time, does not file the replication, or set down the cause to be heard on bill and answer within the times following, viz. :

1850.
LXIV.
Bill may be dismissed.

If Plaintiff does not move in four weeks after answer.

Or amend fourteen days after order to amend.

Or if the Plaintiff does not set down the cause in four weeks.

1850.
LXV.
When there has been amendment.